

25STCV34690 25STCV34690

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Case Number: 25STCV34690 Hearing Date: August 5, 2026 Dept: 224

Botte v. Quantstamp Inc.

TENTATIVE RULING

The request for Default Judgment is DENIED.

The Court continues the OSC Re Default Judgment to December 3, 2026 at 9:00 a.m. Documents and legal briefs addressing the deficiencies in this order are due no later than November 6, 2026.

If Plaintiff is unable to state a cognizable cause of action at the next hearing, the Court on its own motion will set an Order to Show Cause Re Why the Court Should Not Enter Judgment Against Plaintiff for failure to state a valid cause of action.

ANALYSIS

FACTS OF THE CASE: Plaintiff Corrine Botte seeks default judgment against Defendant Quantstamp, Inc. in the total monetary amount of \$5,623.43, consisting of \$5,000.00 in statutory damages and \$623.43 in costs. Plaintiff also seeks a permanent injunction prohibiting Defendant from using X Corp. 's tracking Software Development Kit on www.quantstamp.com and requiring Defendant to disgorge all of Plaintiff's data provided to X Corp. through the Software Development Kit.

The Complaint asserts a single cause of action for violation of the California Trap and Trace Law (California Penal Code section 638.51.) Plaintiff alleges Defendant embedded X Corp.'s Software Development Kit on its website, that the Software Development Kit automatically captures device identifiers, browser specifications, network-routing information, and session behavior before a visitor can consent, and that all of this information is then transmitted to X Corp. Plaintiff alleges that she visited the website while in California on February 1, 2025, without consenting to the alleged collection or transmission of her information.

PROOF OF SERVICE/DEFAULT: Default previously entered on 2/20/26.

STATUTORY DAMAGES REQUESTED: \$ 5,000.00

RECOVERABLE COSTS: \$ 623.43

TOTAL: \$ 5,623.43

DISCUSSION:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered.

There is no pending motion to vacate default.

Plaintiff has dismissed DOES 1-25, all parties against whom a default judgment is not being sought.

The JC Form CIV-100 was used to request court judgment, item 2 is completed, and the declaration of nonmilitary status requirement is fulfilled as Defendant is a business entity.

A memorandum of costs is verified on the CIV-100 form.

The amount requested in the proposed judgment does not exceed the amount alleged in the Complaint. Paragraph 35 of the Complaint alleges entitlement to statutory damages of \$5,000 per violation, and the present application seeks damages for one alleged violation.

Plaintiff submitted 585 declarations in support of default judgment from Plaintiff Corrine Botte and counsel Camrie Ventry.

PROBLEMS:

Plaintiff submitted a proposed judgment, but it was not on a JUD-100 form.

Whether the complaint states a valid cause of action turns on an unsettled legal question. Default judgment cannot be entered on a complaint that fails to state a valid claim, and the contention that a website tracking Software Development Kit constitutes a "trap and trace device" under Penal Code § 638.51 is still largely disputed. A trap and trace device is "a device or process that captures the incoming electronic or other impulses that identify the originating number or other dialing, routing, addressing, or signaling information reasonably likely to identify the source of a wire or electronic communication, but not the contents of a communication." (Pen. Code § 638.50, subd. (c).) Although a defendant's default admits the material facts properly pleaded in the complaint, it does not admit contentions or conclusions of law. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 281.) Defendant's default therefore does not establish that the SDK constitutes a "trap and trace device" within the meaning of the statute; that remains a legal question for the Court to decide. If the well-pleaded allegations do not state a valid cause of action, a default judgment cannot be entered. (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 382.) Plaintiff has not cited any published case concluding that the statute applies to anything other than telephonic communications. The statute applies only to telephone communications and not to software on commercial websites. (See Blaker v. NetScout Systems (LASC No. 25STCV31283) (LASC sustained a demurrer without leave to amend regarding a complaint alleging that the exact same X Corp. Software Development Kit used in this case was a trap and trace device, concluding that the statute applies only to telephone communications and not to software on commercial websites.)

The default judgment is DENIED on this basis, concluding that the alleged SDK does not constitute a trap-and-trace device within the meaning of Penal Code section 638.51, and Plaintiff has offered no legal authority establishing this as a valid cause of action. Accordingly, the Court finds that the Complaint fails to state a valid cause of action.

The Court also denies default judgment on the separate grounds that Plaintiff does not adequately establish personal jurisdiction over the Arizona corporate Defendant. Quantstamp is an Arizona corporation with its principal place of business in Peoria, Arizona, and was served in Arizona. Plaintiff alleges that she accessed Defendant's website while in California and that Defendant allegedly contracted with X Corp. while X Corp. was headquartered in California. Plaintiff does not establish, however, that Defendant specifically targeted California customers or specifically directed the alleged tracking activity toward California. The mere ability to access a website in California is not sufficient to establish personal jurisdiction under *Pavlovich v. Superior Court* (2002) 29 Cal.4th 262.

Finally, the proposed injunction reaches a nonparty. The proposed judgment orders that Defendant "disgorge all of Plaintiff's data provided to X Corp. through the SDK Software." X Corp. is not a party to the case, and the judgment cannot compel it to delete or return anything. If this sort of injunction is granted, it should be limited to data within Defendant's possession and control.

DISPOSITION:

The request for Default Judgment is DENIED.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.